HECISA La Calidad... como Norma

Hispano Europea de Comercio e Industria, S.L.
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General conditions on sales

1. Overview
   1.1. The conditions set forth below shall govern all sales, supplies, and services performed by HISPANO EUROPEA DE COMERCIO E INDUSTRIA, S.L. (HECISA) (hereinafter "the Seller"), unless otherwise agreed in writing and expressly accepted by HECISA.
   1.2. These Conditions are drafted in accordance with the INCOTERMS 2020 rules of the International Chamber of Commerce.
   1.3. These General Conditions shall supersede any contrary, different, or additional conditions (if any) contained in, or referenced in, the purchase order or any other document(s) or correspondence received from the Buyer, and no addition, alteration, or substitution of these Conditions shall in any way bind the Seller or form part of any contract unless expressly accepted in writing by the Seller.
2. Specifications
   2.1. All supplies provided by the Seller shall conform to the specifications or descriptions expressly listed or presented in the Contract. No other specifications, descriptive materials, oral or written communications, correspondence, exhibits, or promotional or commercial documentation shall form part of or be incorporated into the Contract.
   2.2. It is the Buyer's responsibility to ensure that the supplies are suitable for their intended use prior to their acceptance and use. This responsibility shall extend to the selection of appropriate materials. The Buyer shall ensure that the product is suitable for use.
3. Validity of the Offer.
   3.1. Unless otherwise indicated, the offer shall be valid for thirty (30) calendar days from the date of the offer and shall require written confirmation in the case of an order.
4. Order.
   4.1. An order shall be deemed final upon acceptance by the Seller, as notified in the corresponding order acknowledgment. 4.2. No work will be performed without a firm order, except for preliminary contacts with regular suppliers to verify availability.
5. Prices.
   5.1. Prices are ex-works, ex-works, from our Madrid warehouse, without packaging, unless expressly indicated otherwise.
   5.2. For imported materials, the delivery point may be the receiving location, if more convenient.
6. Taxes.
   6.1. All taxes, fees, levies, duties, etc., of any kind, applicable as a result of the sale, shall be the Buyer's responsibility.
7. Terms and Payment Methods.
   7.1. Unless other payment terms are specified in the offer and/or order acknowledgment, payment will be deemed to be made as follows:
   - 40% upon order placement.
   - 50% when performing operational tests.
   - The remaining 10% previous to dispatch, all via wire transfer.

   7.2. Claims of any kind do not justify withholding payments or the Buyer's failure to fulfill its obligations. Claims, where applicable, will be estimated, valued, and settled independently of the contracted price.
   7.3. If, with the Seller's authorization, the established payment terms are varied, the Buyer must pay the costs incurred and the resulting interest at the legal interest rate in effect at the time of delivery, increased by fifty (50) percent.
   7.4. Regardless of the means of payment used, payment will not be deemed made until the Seller's account has been fully and irrevocably settled.

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7.5. In the event of late payment, the Seller may, after notifying the Buyer in writing and in a reliable manner, suspend performance of its part of the contract until it receives the agreed payment.

8. Price Revision

8.1. Prices for domestically sourced supplies will be subject to revision based on fluctuations in labor rates and raw material prices.

8.2. Prices for imported materials and/or equipment will also be subject to revision, up or down, if the currency fluctuation between the date of the offer and the date of delivery exceeds three (3) percent or if there are changes in import duties and/or taxes.

9. Deliveries and Invoicing.

9.1. The delivery times indicated in the offer are deemed to begin with the Seller's written acceptance of the order, supplemented by the Buyer's approval of all manufacturing documents. These delivery times require confirmation in the order acknowledgment.

9.2. Supplies will be considered delivered when the Seller informs the Buyer that they are ready for delivery at the Seller's workshops or warehouses, or at a port warehouse, in the case of imported supplies.

9.3. Once the supply has been considered delivered, the Seller may invoice the equipment, services, and/or materials ordered. The Seller reserves the right to make partial deliveries and proceed with the corresponding subsequent invoicing.

10. Deposit Guarantees and Security.

10.1. In the event of a down payment on the price stipulated in the Contract, the Seller may provide the Buyer with a bank guarantee for said amount. This guarantee will be valid from the date of payment until delivery of the goods. In any case, the physical return of the guarantee to the guarantor will NOT be required.

10.2. The Seller will not provide any guarantee on account if the payment date falls after delivery of the goods.

10.3. At the Buyer's request, the Seller may provide a guarantee for an amount established in the Contract, which will be valid from the date of payment until the end of the Guarantee period. This Guarantee, as well as the obligations arising from it, will be drafted in accordance with Spanish law (see paragraph 21.1).

10.4. The costs of the guarantees provided will be reflected in the invoice, unless otherwise agreed in writing in accordance with 1.1.

11. Penalties.

11.1. Late payment will be penalized by one (0.5) percent of the price of the goods for each week (or fraction) of the delay in payment, up to a total of ten (5) percent of the Contract price. This penalty will not affect the suspension of the contract pursuant to clause 7.5.

11.2. In the event that a Guarantee or Deposit bond has been provided, delays in canceling or returning the bond attributable to the Buyer will be penalized by one (1) percent of the amount of the bond for each week (or fraction thereof) of delay in payment, up to a total of ten (10) percent of the price.

12. Transfer of Risk.

12.1. The risk of the goods will be transferred to the Buyer when the Seller informs the Buyer that the goods are at its disposal. The foregoing shall also apply in the case of that shipment is carried out free of charge by the Seller or that transportation has been arranged by the Seller. In any case, the risk of the goods will be transferred to the Buyer as soon as the supplies are delivered to the first carrier.

13. Excusable Delays.

13.1. The Seller shall not be liable for delays in the performance of its obligations arising from force majeure, strikes or labor disputes, acts or omissions of the Buyer, inability to obtain labor or materials from normal sources of supply, or difficulties in customs or transportation clearance that may result in delays due to causes beyond the Seller's control, beyond its control, or unforeseeable.

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13.2. In the event of an excusable delay, the scheduled date for performance of the obligations will be automatically extended for the period necessary to compensate for this delay, and the Buyer shall pay the Seller any additional expenses incurred by the latter due to delays caused by causes or circumstances beyond its control or intention. 13.3. Any cause or circumstance beyond the control or intention of the Seller shall in no way constitute grounds for cancellation of the Contract.

13.4. The Seller shall not be liable for: • loss of profits, business, contracts, revenues, or anticipated savings arising from delayed delivery. • damages of any kind, directly or indirectly arising from delayed delivery.

14. Transport and insurance.

14.1. At the Buyer's request, the Seller may arrange for the transportation of the goods from the warehouse or port, as appropriate, as well as their insurance, with the goods traveling at the Buyer's expense and risk, as set forth in clause 12.1.

15. Retention of Title.

15.1. The Seller retains full ownership of its supplies, even against third parties, until the reciprocal condition of full payment has been fully and satisfactorily fulfilled. Any damage, loss, shrinkage, or misplacement of the equipment and/or materials shall be the Buyer's responsibility from the moment they are delivered to the Buyer, whether directly or through intermediaries (transporters, couriers, etc.). Only reliable proof of full payment establishes ownership with all the inherent effects in favor of the Buyer, even against third parties.

15.2. At the Buyer's request, the Seller will advise the Buyer in order to take any necessary measures to protect the ownership of the Seller's goods.

15.3. The retention of title shall not affect the transfer of risk under clauses 12.1 and from the warehouse or port, as appropriate, as well as their insurance, with the goods traveling at the Buyer's expense and risk, as set forth in clause 12.1.

16. Storage

16.1. If, once the goods have been prepared for shipment, as set forth in Chapter 9 (Deliveries and Invoicing), delivery is delayed for reasons attributable to the Buyer, the Seller may charge the Buyer, starting from the date the goods were at its disposal, all expenses incurred for storage, warehousing, insurance, etc., of the goods.

17. Order Cancellation.

17.1. Any cancellation of the order requires the Seller's prior acceptance.

17.2. In the event of an accepted cancellation of the order, the Buyer agrees to pay the total sales value of the work, purchases, and services performed. This amount may not, under any circumstances, be less than twenty (20) percent of the order value.

18. Economic Losses

18.1. Notwithstanding anything contained in these General Conditions or the Contract, the Seller shall not be penalized contractually under any circumstances (including negligence and breach of contract) for:

• loss of profits, business, contracts, revenues, or savings,

• damages of any kind, directly or indirectly arising from the Contract, regardless of the cause.

19. Confidentiality

19.1. Both the Buyer and the Seller shall maintain strict confidentiality and shall not, without the prior written consent of the other party, communicate to third parties any technical or commercial information about the goods or the Contract that has been acquired from the other party through discussions, negotiations, or other communications between them.

20. Jurisdiction.

20.1. Both parties waive their own jurisdiction and, for any matter that may arise or derive from the corresponding Contract, expressly submit to the Arbitration Boards and the Courts and Tribunals of Getafe (Madrid)